

Court No. - 41

Case :- WRIT - C No. - 11601 of 2016

Petitioner :- Rakesh Khandelwal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Learned counsel for the respondent Corporation Sri S.C. Pandey, may place before the Court final assessment with regard to the petitioner's electricity connection.

Put up as a fresh case on 17.03.2016 showing the name of Sri S.C. Pandey, Advocate from the side of the respondents.

Order Date :- 14.3.2016

RPS

Court No. - 3

Case :- WRIT - C No. - 11601 of 2016

Petitioner :- Rakesh Khandelwal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi, S.C. Pandey

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

As a last opportunity, two days further time is allowed to Sri S.C. Pandey, learned counsel for the respondents to produce the final assessment order in respect of the petitioner as required vide order dated 14.03.2016.

Put up as fresh on 31 March, 2016.

It is being made clear that in case the relevant documents are not produced before the Court on the date fixed, personal appearance of the Managing Director of the Dakshinanchal Vidyut Vitran Nigam Limited may be directed.

Order Date :- 28.3.2016

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Court No. - 3

Case :- WRIT - C No. - 11601 of 2016

Petitioner :- Rakesh Khandelwal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi, S.C. Pandey

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

As prayed, put up on 4th of April 2016, as fresh.

Order Date :- 31.3.2016

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Court No. - 3

Case :- WRIT - C No. - 11601 of 2016

Petitioner :- Rakesh Khandelwal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi, S.C. Pandey

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Heard Sri Vishal Agarwal, learned counsel for the petitioner and Sri S.C. Pandey, learned counsel for the respondents.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the demand notice dated 19.07.2014 issued by the respondent no. 2.

Sri S.C. Pandey, learned counsel for the respondents, on the basis of instruction, states that the petitioner was caught for committing theft of electricity and therefore, a provisional assessment was made and when no objection was filed, a final assessment was prepared and on the basis of the same, demand notice has been issued and when the petitioner failed to deposit the amount, the recovery proceeding has been initiated against him.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery proceeding cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned demand notice dated 19.07.2014 for recovery of electricity dues of Rs. 2,29,802/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 4.4.2016

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